



Endeavour – retail liquor store in Muswellbrook (NSW)

MN-30012

Phase 1 Determination

Acquisition may be put into effect

16 June 2026

1. Determination and statement of reasons

Notified acquisition	Endeavour Group (Endeavour Group) proposes to acquire: - substantially all of the assets of the Prince of Wales Hotel retail liquor store (the Target) in Muswellbrook, New South Wales, from Upper Hunter Motors Pty Limited; and - a leasehold interest for the premises on which Upper Hunter Motors Pty Limited operates the Prince of Wales Hotel retail liquor store, from Jabetin Pty Limited (the Acquisition). The proposed lease excludes the land on which the Prince of Wales Hotel bar and restaurant premises are situated.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Endeavour, is an Australian public company that primarily operates: - retail liquor stores nationwide under the BWS and Dan Murphy's brands; - licensed hotel venues under the ALH Hotels banner in all state and territories. These venues are individually branded venues offering on-premises food and drinks, entertainment, gaming services and, in some cases, accommodation; and - Pinnacle Drinks, which is a manufacturer and distributor of liquor products, which it distributes exclusively to the Endeavour retail and hotel network in Australia The target is the Prince of Wales Hotel, a retail liquor store located at 36 Sydney Street, Muswellbrook NSW 2333, which trades under the Bottlemart brand. The business and assets of the target are operated by Upper Hunter Motors Pty Limited and the freehold land on which the Prince of Wales Hotel retail liquor store is situated is owned by Jabetin Pty Limited.
Overlap and relationship between the parties	The parties both supply takeaway packaged liquor in New South Wales, however Endeavour Group does not have a presence in Muswellbrook.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines.

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	In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. ▪ There is no local overlap between Endeavour Group and the Princes of Wales Hotel, as Endeavour Group does not operate in Muswellbrook. The closest Endeavour Group site is 28km by road (23-minute drive time away) in Scone. ▪ The aggregation arising from the Acquisition, including considering previous acquisitions by Endeavour in the last three years, is not sufficient to meaningfully change competition over a relevant broader market.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act